IN THE UNITED STATES DISTRICT COURT

FOR THE DISTRICT OF OREGON

TYLER ALLEN LOFALL,

Plaintiff,

v.

STATE OF OREGON *et al.*,

Defendants.

Case No. 3:24-cv-00839-SB

FINDINGS AND RECOMMENDATION

BECKERMAN, U.S. Magistrate Judge.

Plaintiff Tyler Allen Lofall ("Lofall"), a self-represented litigant, filed this action against Defendants State of Oregon, County of Clackamas, Clackamas County Police Department, John Doe Officer 1, and John Doe Officer 2 (together, "Defendants").

On June 10, 2024, the Court granted Lofall's application for leave to proceed *in forma pauperis* and ordered Lofall to show cause in writing by July 8, 2024, why the Court should not dismiss his complaint for failure to state a claim. (*See* Order, ECF No. 7.) Lofall filed a declaration in response to the Court's Order. (*See* Decl. Tyler Allen Lofall ("Lofall Decl."), ECF No. 8.) For the reasons explained below, the Court recommends that the district judge dismiss Lofall's complaint for failure to state a claim.

DISCUSSION

I. LEGAL STANDARDS

A. Screening Requirement

A district court must perform a preliminary screening of an *in forma pauperis* complaint and dismiss any claims that fail to state a claim upon which relief may be granted, are frivolous or malicious, or seek monetary relief against a defendant who is immune from such relief. *See* 28 U.S.C. § 1915(e)(2)(B); *see also Lopez v. Smith*, 203 F.3d 1122, 1129 (9th Cir. 2000) (explaining that § 1915(e)(2)(B) applies to non-prisoners); *Preciado v. Salas*, No. 13-cv-0390, 2014 WL 127710, at *1 (E.D. Cal. Jan. 14, 2014) (stating that courts are "required to screen complaints brought by plaintiffs proceeding *pro se* and *in forma pauperis*") (citation omitted).

B. Pleading Requirements

The Federal Rules of Civil Procedure require a plaintiff to state "a short and plain statement" in a complaint showing that the plaintiff is entitled to relief. *See* FED. R. CIV. P. 8(a)(2). To state a claim for relief, a "complaint must contain sufficient factual matter, accepted as true, to 'state a claim to relief that is plausible on its face.'" *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009) (quoting *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 570 (2007)). "A claim has facial plausibility when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged." *Id.* (citing *Twombly*, 550 U.S. at 556). "The plausibility standard is not akin to a 'probability requirement,' but it asks for more than a sheer possibility that a defendant has acted unlawfully." *Id.* (quoting *Twombly*, 550 U.S. at 556).

C. Self-Represented Litigants

"Pro se pleadings are held to a less stringent standard than those drafted by lawyers." *Graves v. Nw. Priority Credit Union*, No. 3:20-cv-00770-JR, 2020 WL 8085140, at *2 (D. Or.

Dec. 12, 2020) (citing *Haines v. Kerner*, 404 U.S. 519, 520 (1972)). "In cases involving a [self-represented] plaintiff, the court construes the pleadings liberally and affords the plaintiff the benefit of any doubt." *Kali v. Bulk Handling Sys.*, No. 6:18-cv-02010-AA, 2019 WL 1810966, at *4 (D. Or. Apr. 23, 2019) (citing *Wolfe v. Strankman*, 392 F.3d 358, 362 (9th Cir. 2004)).

"The court, in many circumstances, instructs the [self-represented] litigant regarding deficiencies in the complaint and grants leave to amend." *Graves*, 2020 WL 8085140, at *2 (citing *Eldridge v. Block*, 832 F.2d 1132, 1136 (9th Cir. 1987)). "Nevertheless, a [self-represented] plaintiff's claims may be dismissed without leave to amend where it appears beyond doubt that the plaintiff can prove no set of facts that would entitle [the plaintiff] to relief." *Id.* (citing *Barrett v. Belleque*, 544 F.3d 1060, 1061-62 (9th Cir. 2008)).

II. LOFALL'S ALLEGATIONS

In Lofall's declaration, he provides background information about an unpaid contract for his remodeling services, legal challenges, and conflict with an ex-girlfriend. (*See* Lofall Decl. ¶¶ 1-28.) He describes antagonism and property damage initiated by his ex-girlfriend, and his "false arrest" in March 2022 for harassment. (*Id.* ¶¶ 29-50.) Eventually, Lofall was released from jail. (*Id.* ¶¶ 51-72.)

In his complaint, Lofall alleges that two officers—John Doe Officer 1 and John Doe Officer 2—arrested him in a parking lot on May 24, 2022. (Compl. ¶ 9, ECF No. 2.) He asserts that he had just been released from jail on bail "for the same issue for which he was . . . re-arrested[.]" (*Id.* ¶ 10.) In his declaration, Lofall alleges that the re-arrest subjected him to double jeopardy. (Lofall Decl. ¶ 73.)

According to the complaint, at the time of his arrest, Lofall was driving his friend's car. (Compl. ¶¶ 11, 13.) In his declaration, Lofall states that he was helping a friend recover a stolen vehicle. (Lofall Decl. ¶ 73.) Lofall told the arresting officers not to leave the car with other

individuals who were present. (Compl. ¶ 11.) The officers disregarded his directions, did not secure Lofall's property, and gave the other individuals the keys to the car. (*Id.* ¶¶ 12, 14.) According to Lofall, those people stole the car. (*Id.* ¶ 13.) Lofall also alleges that the officers' actions resulted in the "loss of [Lofall]'s valuable materials and tools, which were left at [his] friend's house[.]" (*Id.*) Lofall states that the "West Linn Police officers hid their evidence behind a DHS seal and changed their policy once I filed my claim to sue them." (Lofall Decl. ¶ 74.)

Lofall alleges claims of negligence, "deprivation of property under 42 U.S.C. § 1983," civil theft or conversion, "violation of civil rights," and intentional infliction of emotional distress. (Compl. at 4-6.) Lofall seeks damages and injunctive relief.[1] (*Id.* at 7.)

III. ANALYSIS

A. Eleventh Amendment

"The Eleventh Amendment bars suits against the State or its agencies for all types of relief, absent unequivocal consent by the state." *Romano v. Bible*, 169 F.3d 1182, 1185 (9th Cir. 1999) (citing *Pennhurst v. Halderman*, 465 U.S. 89, 100 (1984)). Section 1983 permits suit against "persons," which the U.S. Supreme Court has construed to mean "state officials sued in their individual capacities[.]" *Hafer v. Melo*, 502 U.S. 21, 23 (1991). The state and its agencies "are not 'persons' within the meaning of § 1983, and are therefore not amenable to suit under that statute." *Maldonado v. Harris*, 370 F.3d 945, 951 (9th Cir. 2004) (citing *Will v. Mich. Dep't of State Police*, 491 U.S. 58, 70 (1989)). Similarly, "[e]ven though the Oregon Tort Claims Act ["OTCA"] is a waiver of sovereign immunity, it does not waive Eleventh Amendment immunity." *Olson v. Allen*, No. 3:18-cv-001208-SB, 2019 WL 1232834, at *5 n.3 (D. Or. Mar.

[1] Lofall attached a pro se complaint form to his complaint, which appears to be related to a different case, *Lofall v. County of Clackamas*, 3:24-cv-00838-SB. (Compl. at 8-13.)

15, 2019) (quoting *Ross v. Shelton*, No. 2:18-cv-00045-YY, 2019 WL 846043, at *7 (D. Or. Feb. 21, 2019)).

The Court ordered Lofall to show cause in writing why the Court should not dismiss his claims against the State of Oregon, and Lofall did not respond. (*See* Order at 4-5.) Lofall has not alleged that the State of Oregon has waived its Eleventh Amendment immunity or otherwise demonstrated that the State has consented to be sued in federal court. Accordingly, the Eleventh Amendment bars Lofall's claims against the State of Oregon, and the Court recommends that the district judge dismiss the State of Oregon with prejudice. *See Doyle v. Nevada*, No. 3:23-cv-00018-MMD-CSD, 2023 WL 8378945, at *3 (D. Nev. June 9, 2023) (dismissing the state defendant with prejudice at screening based on Eleventh Amendment sovereign immunity); *Burns v. Hawaii*, No. 23-cv-00143-JMS-KJM, 2023 WL 2814623, at *3 (D. Haw. Apr. 6, 2023) (same).

B. Section 1983 Claims Against the Clackamas County Police Department

Police departments are often "merely the vehicle through which [a] city fulfills its police functions[,]" not "a separate entity from the [c]ity . . . [that is] amenable to suit [under § 1983]." *Shore v. City of Portland*, No. 3:17-cv-01519-YY, 2018 WL 3469037, at *2 (D. Or. May 21, 2018) (quoting *Nwerem v. City of Portland/Portland Police Bureau*, No. 3:06-cv-1054-MO, 2006 WL 3228775, at *2 n.1 (D. Or. Nov. 6, 2006) and collecting cases); *see also Clark v. Milwaukie Police Dep't*, No. 3:22-cv-00662-SB, 2022 WL 4473487, at *3 n.2 (D. Or. Sept. 15, 2022) (noting that the parties had not addressed whether the police department was a separate entity from the city), *findings and recommendation adopted*, 2022 WL 4466942 (D. Or. Sept. 26, 2022); *Haliburton v. City of Albany Police Dep't*, No. 3:04-cv-06062-KI, 2005 WL 2655416, at *2-3 (D. Or. Oct. 18, 2005) ("[The plaintiff] has not made a showing that the City of Albany

intended to create a separate legal entity when it formed the Police Department. Typically, the city itself is sued and not the police department.").

The Court ordered Lofall to show cause in writing why the Court should not dismiss his claims against the Clackamas County Police Department, and Lofall did not respond. (*See* Order at 5-6.) Lofall has properly named Clackamas County and John Doe Officers 1 and 2 as defendants. However, Lofall has not alleged that the Clackamas County Police Department is a separate legal entity subject to suit or a proper defendant under Section 1983. The Court recommends that the district judge dismiss Lofall's claims against the Clackamas County Police Department without prejudice. *See Villanueva v. City of Visalia*, No. 1:23-cv-00757-JLT-BAM, 2024 WL 1257214, at *1-2 (E.D. Cal. Mar. 25, 2024) (dismissing the municipal police department as a defendant); *Dodds v. City of Eugene*, No. 6:23-cv-00092-AA, 2023 WL 7166557, at *3 (D. Or. Oct. 31, 2023) (explaining at screening that "[i]f plaintiff wants to sue the Eugene Police Department as a whole, in addition to the individual officers, the proper defendant he must name is the City of Eugene"); *Mecautea v. Oregon*, No. 3:19-cv-01864-MO, 2020 WL 1812012, at *2 (D. Or. Apr. 9, 2020) (dismissing the sheriff's and police departments as defendants and explaining that "[w]hile individual state actors, local government units, or municipalities can be sued under Section 1983, sheriff or police departments are generally not considered suable entities").

C. Fourteenth Amendment

Lofall alleges that Defendants deprived him of his property in violation of the Fourteenth Amendment's Due Process Clause. (Compl. at 5.)

"[W]hen deprivations of property are effected through random and unauthorized conduct of a state employee, predeprivation procedures are simply 'impracticable' since the state cannot know when such deprivations will occur." *Hudson v. Palmer*, 468 U.S. 517, 533 (1984).

Accordingly, "an unauthorized intentional deprivation of property by a state employee does not constitute a violation of the procedural requirements of the Due Process Clause of the Fourteenth Amendment if a meaningful postdeprivation remedy for the loss is available." *Id.*

The Court ordered Lofall to show cause in writing why the Court should not dismiss his Fourteenth Amendment claim given the available post-deprivation remedy. (Order at 6-7.) In his declaration, Lofall mentions that the West Linn Police Department, which is not a defendant to the instant case, changed its policy after his arrest. (Lofall Decl. ¶ 74.) Lofall has not alleged that the Clackamas County officers deprived him of his property pursuant to police policy, and the facts alleged do not suggest that "the state could have anticipated the officers' actions." *Rodriguez v. Cain*, No. 2:19-cv-00087-AR, 2024 WL 1016058, at *4 (D. Or. Mar. 8, 2024). Further, the State of Oregon provided Lofall with an adequate post-deprivation remedy—a state tort action. *Id.* at *5 (explaining that "[o]ther courts in this district have concluded that the OTCA is an adequate post-deprivation remedy for claims of unauthorized, intentional deprivations of property" and collecting cases).

Accordingly, Lofall has failed to state a Fourteenth Amendment procedural due process claim, and the Court recommends that the district judge dismiss his Fourteenth Amendment claim without prejudice.[2] *See Evans v. Gower*, No. 2:17-cv-01162-MK, 2022 WL 3226968, at *12 (D. Or. Aug. 10, 2022) ("Here, because the Oregon Tort Claims Act provides an adequate post-deprivation remedy, Plaintiff fails to state a due process claim for his lost or damaged property."); *Dunbar v. Alameda Cnty. Sheriff's Off.*, No. 19-cv-7703 WHA (PR), 2020 WL 2524136, at *1 (N.D. Cal. May 15, 2020) ("Plaintiff's claim against [the defendant] for the

[2] Further, Lofall has not alleged facts suggesting that he has standing to challenge the loss of his friend's car and has not alleged sufficient factual matter to demonstrate a causal connection between Defendants' actions and the loss of his tools from his friend's house.

destruction of property is not cognizable because neither the negligent nor intentional deprivation of property states a due process claim under § 1983 where, as alleged here, state law did not authorize the deprivation.") (citations omitted).

D. Violation of Civil Rights

The Court ordered Lofall to show cause in writing why the Court should not dismiss his violation of civil rights claim for failure to state a claim. (Order at 7.) In his complaint, Lofall alleges generally that Defendants violated his civil rights. (Compl. at 6.) In his declaration, Lofall suggests a double jeopardy violation. (Lofall Decl. ¶ 73.)

"To state a claim under § 1983, a plaintiff must allege the violation of a right secured by the Constitution and laws of the United States, and must show that the alleged deprivation was committed by a person acting under color of state law." *West v. Atkins*, 487 U.S. 42, 48-49 (1988) (citations omitted). To the extent that Lofall alleges a general civil rights violation, the complaint is too vague to state a claim. *See Calderon v. Covello*, No. 2:23-cv-1974 DB P, 2023 WL 7168471, at *3 (E.D. Cal. Oct. 31, 2023) ("Plaintiff has stated that his rights have been violated, but the complaint does not contain any facts explaining what acts, or failure to act, defendants took that resulted in the alleged rights violation."). To the extent he suggests that his second arrest was a double jeopardy violation, he has failed to plead sufficient factual matter to establish that he was prosecuted twice for the same offense. *See* OR. REV. STAT. § 131.515(1) ("No person shall be prosecuted twice for the same offense."); *cf. Grant v. State of Or.*, No. 3:21-cv-01588-SB, 2022 WL 2910015, at *6 (D. Or. June 15, 2022) ("If [the plaintiff] wishes to pursue false arrest or search-related claims, he must include far more detailed allegations about the circumstances of his arrest and the search."), *findings and recommendation adopted*, 2022 WL 2904396 (D. Or. July 22, 2022). Accordingly, the Court recommends that the district judge dismiss Lofall's claim without prejudice.

E. Oregon Tort Claims Act

Lofall alleges state law claims of negligence, conversion, and intentional infliction of emotional distress. (Compl. at 4-6.) However, Lofall has not pled timely notice under the OTCA. *See* OR. REV. STAT. § 30.275 (providing that "[n]o action arising from any act or omission of a public body or an officer, employee or agent of a public body within the scope of [OR. REV. STAT. §§] 30.260 to 30.300 shall be maintained unless notice of claim is given as required by this section" and explaining that a plaintiff must give notice within 180 days of the alleged loss). The Court ordered Lofall to show cause in writing why the Court should not dismiss his state law claims for failure to plead timely notice, and Lofall did not respond. (Order at 8.)

Accordingly, the Court recommends that the district judge dismiss Lofall's state law claims without prejudice.[3] *See Wilson v. Dep't of Hum. Servs.*, No. 3:20-cv-1819-JR, 2021 WL 6618288, at *2-3 (D. Or. Nov. 4, 2021) (dismissing claims for failure to plead timely notice under the OTCA), *findings and recommendation adopted*, 2022 WL 180233 (D. Or. Jan. 20, 2022); *Auchenbach v. Cnty. of Madera*, No. 1:16-cv-01645-DAD-SKO, 2017 WL 1272365, at *5 (E.D. Cal. Feb. 3, 2017) (dismissing intentional infliction of emotional distress claim at screening for failure to comply with the tort claims act notice requirement); *Harris v. City of Portland Police Dep't*, No. 3:15-cv-00853-HZ, 2016 WL 890927, at *3 (D. Or. Mar. 8, 2016) ("[F]ailure to plead that notice of claims was given in accordance with the OTCA subjects a

[3] To the extent Lofall raises new claims based on events described in his declaration, those claims are not part of Lofall's current complaint and the Court will consider those claims only if Lofall elects to include them in an amended complaint. However, the Court notes that Lofall has an ongoing state court case related to those events (*see* Clackamas County Circuit Court No. 22CV39627), and therefore the *Younger* abstention doctrine (which bars a federal court from interfering with ongoing state court proceedings absent extraordinary circumstances) and the *Rooker-Feldman* doctrine (which bars a federal court from hearing a direct appeal from the final judgment of a state court) will likely bar Lofall's claims relating to his pending state case.

complaint to dismissal." (citing *Halseth v. Deines*, No. 3:04-cv-00196-AS, 2004 WL 1919994, at *3 (D. Or. Aug. 26, 2004))).

CONCLUSION

For the reasons stated, the Court recommends that the district judge DISMISS Lofall's claims against the State of Oregon with prejudice and DISMISS the remainder of Lofall's claims with leave to amend within thirty days.

SCHEDULING ORDER

The Court will refer its Findings and Recommendation to a district judge. Objections, if any, are due within fourteen (14) days from service of the Findings and Recommendation. If no objections are filed, the Findings and Recommendation will go under advisement on that date. If objections are filed, a response is due within fourteen (14) days after being served with a copy of the objections. When the response is due or filed, whichever date is earlier, the Findings and Recommendation will go under advisement.

DATED this 15th day of July, 2024.

Stacie F. Beckerman

HON. STACIE F. BECKERMAN
United States Magistrate Judge